

ments of that kind, the Court expects demonstration that they relate to the subject-matter (*f*); nor will the trust be executed if the precise nature of the trust cannot be ascertained (*g*); and if the trust be established on the answer of

(*f*) *Forster v. Hale*, 3 Ves. 708, *per* Lord Alvanley; *Morton v. Tew-*
per Lord Alvanley; *Smith v. Mat-* art, 2 Y. & C. Ch. Ca. 80, *per* Sir J.
 thews, 3 De G. F. & J. 139. L. K. Bruce; *Smith v. Matthews*, 3
 (*g*) *Forster v. Hale*, 3 Ves. 707, De G. F. & J. 139.

to A., as executor of B., of debt due from mortgagor to estate of B. *Williams v. Fullerton*, 20 Vt. 346. A stipulation in a deed that the grantee shall not alien without the consent of his wife, and that if not sold, it shall descend to the heirs of their bodies, does not raise a trust for her. *Huff v. Thomas*, 1 T. B. Mon. 158. Trust may be created by an agreement in a bond; *Barber v. Thompson*, 49 Vt. 213; by directions to continue a business; *Ferry v. Laible*, 31 N. J. Eq. 666; by an agreement to reconvey, though the liability is not changed by a sale and reconveyance by the vendee to the trustee; *Frost v. Frost*, 63 Me. 399; by delivery of notes to secure a balance due to be collected and accounted for; *Ogden v. Larrabee*, 57 Ill. 389; by receipt for purchase money; *Roberts's App.* 92 Pa. St. 407; *Morris v. Webb*, 45 N. Y. Sup'r Ct. 305. Grantee is not affected by the contents of a separate paper of which he is ignorant. *Rogers v. Rogers*, 53 Wis. 36; 40 Am. Rep. 756. A mere intention expressed in letters, that one shall succeed through supposed rule of inheritance, is insufficient. *Russell v. Switzer*, 63 Ga. 711. A trust is created where B. pays for land, taking a conveyance in his own name for the benefit of A. and B., the latter giving a bond to A., to convey one-half to him upon his payment of one-half the purchase money. *Bragg v. Paulk*, 42 Me. 502. A purchaser is bound by trusts inserted in a deed by his directions. *Reilly v. Whipple*, 2 S. C. 277. Creation of a trust by deed was presumed where the attorney for a corporation, bidding in land, took the title in his own name for the sole purpose of conveying it to the corporation. *Wright v. Douglass*, 7 N. Y. 564. A stipulation in a deed absolute on its face, that a part of the conveyed property should be sold and the proceeds accounted for by the grantee, is demonstrative evidence of a trust. *Simpson v. Mitchell*, 8 Yerg. 417. A deed to an administrator, reciting that the grantor had sold, or agreed to sell, and had received a consideration from the intestate, appears on its face to raise a trust for the heirs. *Blythe v. Easterling*, 20 Tex. 565. A. gave B. an acknowledgment that he had received certain property from B. and invested it, a trust being created by implication. *Menude v. Delaire*, 2 Desau. 564. Livery of seisin is not necessary to create a trust in chattels. *Rabun v. Rabun*, 15 La. Ann. 471. A trust may be created by an oral direction to hold in trust for a third person; *Eaton v. Cook*, 25 N. J. Eq. 55; by a wife signing a deed of trust on condition that, when amount is paid, the grantee shall convey to a third person; *Barber v. Milner*, 43 Mich. 248; by delivery of a note to collect and hand the proceeds to a third person; *Walden v. Karr*, 88 Ill. 49. A. conveyed to B., receiving in return an unsealed writing from B., reciting that he had paid A. a certain sum of money and taken a deed, but that on repayment by A., within three years A. should have the improvement or sell a declaration trust from B. to A. *Scituate v. Hanover*, 16 Pick. 222; *Arms v. Ashley*, 4 Pick. 71. In creation of deed of bargain and sale a valuable consideration must be stated, but the amount need not be. *Sprague*